

Human Trafficking and Transportation (Control) Act, 2007

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Human Trafficking and Transportation (Control) Act, 2064

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Amending Acts

1. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 2072.06.14
2. Act to Amend Some Nepal Acts, 2072 2072.11.13
3. Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 2074.06.30
4. Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19
5. Act to Amend Some Nepal Acts relating to the Civil Code, 2075 2076.01.02
6. Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30

Act No. 5 of the year 2064 made by the Legislature-Parliament

An Act made to provide for the control of human trafficking and transportation

Preamble: Whereas it is desirable to provide legal provisions in relation to controlling the act of human trafficking and transportation and to protecting and rehabilitating persons victimized by such act,

The Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short title, extent, and commencement: (1) This Act may be called the "Human Trafficking and Transportation (Control) Act, 2064".
- (2) This Act shall come into force immediately.
- (3) This Act shall apply throughout Nepal and also to any person who, residing outside Nepal, commits an offence under this Act against a Nepali citizen. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Offence" means an act under Section 3.
 - (b) "Centre" means a rehabilitation centre established under Section 13.
 - (c) "Victim" means a person who has been sold, transported, or forced into prostitution.
 - (d) "Child" means a person who has not completed the age of eighteen years.
 - (e) "Exploitation" means the act of enslaving or bonding, and the term also includes the removal of human organs otherwise than in accordance with prevailing law.

(f) 'Prescribed' or 'as prescribed' means prescribed or as prescribed in the rules framed under this Act.

Chapter-2

Provisions relating to Offence and Investigation

3. Prohibition of human trafficking and transportation: (1) No person shall commit or cause to be committed human trafficking and transportation.

(2) If a person commits an act under sub-section (1), he/she shall be deemed to have committed an offence under this Act. 4.

Deemed to have committed human trafficking and transportation: (1) If a person commits any of the following acts, he/she shall be deemed to have committed human trafficking:- (a) Selling or buying a person for any purpose, (b) Forcing a person into prostitution, with or without any benefit, (c) Removing a human organ otherwise than in accordance with prevailing law, (d) Engaging in prostitution. (2) If a person commits any of the following acts, he/she shall be deemed to have committed human transportation:- (a) Taking a person abroad for the purpose of buying or selling, (b) Taking away a person from his/her residing house, place, or person, or keeping with oneself, or taking under one's control, or placing in any place, or taking from one place to another within Nepal or abroad, or handing over to another person, by inducing, alluring, deceiving, defrauding, conspiring, using force, coercion, abducting, holding the body as hostage, taking advantage of a vulnerable situation, rendering unconscious, misusing position or power, alluring the guardian or caretaker, or by causing fear, terror, intimidation, threat, or coercion, with the intention of forcing into prostitution or exploiting. Inserted by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(c) Committing or causing to be committed an act related to human trafficking by making false or fake documents or by deceiving any Nepali citizen, foreigner, or migrant person with the mala fide intention of taking them abroad or unlawfully making such person enter a country other than his/her own country or the place where he/she resides, directly or indirectly, for the purpose of obtaining any illegal gain or other advantage. Inserted by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(d) Sending someone to another country using the route of Nepal for the purpose of buying or selling, or bringing someone to Nepal for the purpose of sending to any country. 5. Filing a complaint: (1) Any person who knows that an offence under Section 3 has been committed, is being committed, or is about to be committed, may file a complaint at the nearest police office. (2) If the person filing a complaint under sub-section (1) makes a written request to keep his/her name confidential, the police office registering the complaint shall keep his/her name confidential. 6.

Getting statement authenticated: (1) If the complaint under Section 5 is made by the victim himself/herself, the police office shall immediately record his/her statement and shall immediately produce him/her before the nearest District Court for the authentication of such statement. (2) When produced for authentication of statement under sub-section (1), notwithstanding anything written in the prevailing law and even if the case related to that statement is not within the jurisdiction of that District Court, the judge of such District Court shall read over the statement to the person, and if it is written as per his/her words, authenticate it mentioning that very content, and if not as per his/her words, mention what and how much difference there is, and authenticate it. (3) If the statement is authenticated under sub-section (2), the court may accept the statement so authenticated as evidence even if such victim is not present in court during the proceedings of the case. 7. Power to arrest or search: (1) If information is received that any act deemed to be an offence under this Act has been committed, is being committed, or is about to be committed in any house, land, place, or vehicle, and if it appears that without immediate action the offender may abscond or escape or any evidence related

to such offence may be lost or destroyed, then, notwithstanding anything written in the prevailing law, a police employee of at least the rank of Police Assistant Inspector may, at any time, prepare a memo and do the following acts:- (a) Enter, search, or take possession of such house, land, place, or vehicle, (b) If anyone obstructs or opposes while doing such act, open or break windows or doors as necessary and take necessary action, (c) Arrest such person without a warrant or conduct a search of the person, (d) Seize or take possession of all clues and evidence found in such house, land, place, or vehicle. (2) While doing an act under sub-section (1), such police employee shall, as far as possible, do so in the presence of a representative of the local level, and if not possible, in the presence of persons present at that time, and shall prepare a mucchalika (site report) thereof and give a copy of it to the owner of the concerned house, land, or vehicle. Amended by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074.(3) If any person is arrested without a warrant under sub-section (1), the arrested person shall, along with such arrest, be presented before the officer having authority to hear the case for approval of such arrest.

Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.8. Action to be taken by keeping the accused in custody: Notwithstanding anything written in the prevailing law, while taking action in a case related to any other offence under this Act, except the offence under clause (d) of sub-section (1) of Section 4, if there is reasonable ground to believe from the evidence immediately available that the accused has committed the offence, the court shall take action by keeping the accused in custody. 9. Burden of proof: Notwithstanding anything written in the prevailing law, if a person is accused of having committed an offence under this Act, the burden of proving that he/she has not committed such offence shall be on that person. Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.10. Right to engage a legal practitioner: In the course of proceedings of a case related to an offence under this Act, the victim may, if he/she so desires, engage a legal practitioner. Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.11. Right to engage an interpreter, sign language expert, or translator: If the victim does not understand the language used in the proceedings of a case related to an offence under this Act, he/she may, with the permission of the concerned office or court, engage an interpreter, sign language expert, or translator. The Government of Nepal shall bear the prescribed amount out of the expenses incurred in engaging such interpreter, sign language expert, or translator upon the request of the concerned person. Chapter-3 Provisions relating to Rescue, Rehabilitation, and Reunification 12. Rescue-related work: If any Nepali citizen has been sold abroad, the Government of Nepal shall arrange for his/her rescue. Inserted by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.12a. Power to make necessary arrangements for mutual legal assistance: While rescuing under Section 12 or in judicial proceedings of a case related to an offence punishable under this Act that is in a foreign country, the Government of Nepal may make necessary arrangements for obtaining mutual legal assistance in accordance with the prevailing law. 13.

Rehabilitation centre: (1) For the purpose of providing physical or mental treatment to victims, rehabilitating them socially, and reuniting them with their families, the Government of Nepal shall establish rehabilitation centres as required. Inserted by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(1a) In coordination with the Government of Nepal, the Provincial Government and the local level may establish rehabilitation centres as required. Inserted by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(1b) If the Provincial Government or the local level wishes to operate rehabilitation centres established by the Government of Nepal, the Government of Nepal may transfer such centres to be operated by the Provincial Government or the local level. (2) An organization may, with the prescribed approval, establish and operate a rehabilitation centre for the purpose

of sub-section (1), and the Government of Nepal shall conduct regular and effective monitoring of such organization and the rehabilitation centre established by it. Inserted by the Act to Amend Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(2a) The monitoring of a centre established and operated by the Provincial Government or the local level under sub-sections (1a) and (1b) shall be done by the concerned Provincial Government or the local level. (3) The Government of Nepal may provide financial and other assistance to a centre operated under sub-section (2) as prescribed. (4) The centre shall arrange for the social rehabilitation and family reunification of the person staying in the centre. (5) The centre must arrange for necessary medication, treatment, and counseling services and facilities for the victim. (6) No person shall force a victim staying in the centre to do any work against his/her will. (7) Provisions relating to the management, operational standards, monitoring of the centre, skill-oriented training and employment for the victim, rehabilitation, and family reunification shall be as prescribed. 14. Rehabilitation Fund: Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.(1) For operating the rehabilitation centres established under sub-section (1) of Section 13, Deleted by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. the Government of Nepal shall establish a Rehabilitation Fund.

Chapter-4

Provisions relating to Punishment and Compensation

15. Punishment: (1) A person committing an offence under Section 3 shall be punished as follows:-

- (a) For buying or selling a person, imprisonment for twenty years and a fine of two hundred thousand rupees,
- (b) For forcing a person into prostitution, with or without any benefit, according to the gravity of the offence, imprisonment from ten years to fifteen years and a fine from fifty thousand rupees to one hundred thousand rupees,
- (c) For removing a human organ otherwise than in accordance with prevailing law, imprisonment for ten years and a fine from two hundred thousand rupees to five hundred thousand rupees,
- (d) For engaging in prostitution, imprisonment from one month to three months and a fine from two thousand rupees to five thousand rupees.
- (e) For taking a person with the intention of buying, selling, or forcing into prostitution,-
 - (1) If taking abroad, imprisonment from ten years to fifteen years and a fine from fifty thousand rupees to one hundred thousand rupees, and if a child is taken, imprisonment from fifteen years to twenty years and a fine from one hundred thousand rupees to two hundred thousand rupees,
 - (2) If taking from one place to another within Nepal, imprisonment for ten years and a fine from fifty thousand rupees to one hundred thousand rupees, and if a child is taken, imprisonment from ten years to twelve years and a fine of one hundred thousand rupees.
- (f) For taking a person from one place to another within Nepal under clause (b) of sub-section (2) of Section 4 with the intention of exploiting, imprisonment from one year to two years, and if taken abroad, imprisonment from two years to five years,
- (g) For committing an offence under clause (b) Inserted by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. or clause (g) of sub-section (2) of Section 4, other than as mentioned in clauses (e) and (f), imprisonment from seven years to ten years,

(j) For abetting, conspiring, or attempting to commit the offence of human trafficking or transportation, or for being an accomplice to such offence, half the punishment for that offence.

(2) Notwithstanding anything written in sub-section (1), in respect of the following matters, the following shall apply:-

(a) If the buyer or seller and the person forcing into prostitution, with or without any benefit, are the same person, separate punishment for buying or selling and for forcing into prostitution, with or without any benefit,

(b) If the buyer or seller or the person forcing into prostitution, with or without any benefit, and the person committing the offence under clause (b) of sub-section (2) of Section 4 are the same person, separate punishment for buying or selling and for committing such offence,

(c) Notwithstanding anything written in clause (b), if the person taking away under clause (b) of sub-section (2) of Section 4 and the person taking abroad or from one place to another within Nepal with the intention of buying, selling, or forcing into prostitution, with or without any benefit, are the same person, separate punishment for taking away and for taking abroad or from one place to another within Nepal.

(3) If a person holding a public office commits an offence under Section 3, in addition to the punishment for that offence, an additional punishment of twenty-five percent of that punishment shall be imposed.

(4) If a person commits an offence under Section 3 in relation to a person under his/her care or custody or a person Amended by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. who is punishable for the offence of incest under prevailing law, in addition to the punishment provided in this Act, an additional punishment of ten percent of that punishment shall be imposed.

(5) If a person commits an offence under Section 3 again, for each subsequent offence, an additional punishment of one-fourth of the punishment for that offence shall be imposed.

Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.(6) If a person who filed a complaint under Section 5 gives any statement during the trial of the case that is contrary to the statement given by him/her earlier, or after proceedings have been initiated against someone based on his/her earlier statement or information, falsifies facts related thereto, or deliberately changes the statement, or fails to appear when called by the court, or fails to assist the court, he/she shall be liable to imprisonment from three months to one year. Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.16. No punishment: If a person knows or has reasonable grounds to believe that he/she is about to be bought, sold, or forced into prostitution, or has been taken, bought, sold, or forced into prostitution, and while seeking help to escape or flee from any place, if someone obstructs, opposes, stops, uses force, attempts to kill, or attempts to rape, and if that person, being convinced that he/she cannot escape, flee, save his/her life, or protect himself/herself from rape without using force against such obstruction, opposition, force, arrest, attempt to kill, or attempt to rape, commits an act resulting in the death of or any injury to the person obstructing, opposing, arresting, using force, attempting to kill, or attempting to rape, then, notwithstanding anything written in the prevailing law, such person shall not be liable to any punishment. 17. Compensation: (1) The court shall order the offender to pay reasonable compensation to the victim, not less than an amount equal to fifty percent of the fine imposed.

Inserted by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based

Violence, 2072.(1a) Notwithstanding anything written in sub-section (1), if it appears that due to the low financial status of the offender or for any other reason the victim cannot obtain compensation from the offender, the court may order to pay reasonable compensation to the victim from the Victim Relief Fund Amended by the Act to Amend Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. established under prevailing law. (2) Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.If the victim dies before receiving the compensation amount under sub-section (1) or (1a), such amount shall be given to the minor children of the victim as prescribed, and if there are no such children, to the dependent parents of the victim. (3) If there are no minor children or dependent parents of the victim entitled to receive the compensation amount under sub-section (2), such amount shall be deposited in the Rehabilitation Fund under Section 14.

Chapter-5 Miscellaneous 18. Confiscation of property: (1) If a person has obtained any movable or immovable property from an offence under this Act, all such property shall be confiscated. (2) If it is proven that a person knowingly used or allowed the use of his/her house, land, or vehicle for committing or causing to be committed an act deemed to be an offence under this Act, such house, land, or vehicle shall be confiscated. 19. Reward: (1) If, based on information provided by any person that an act deemed to be an offence under this Act has been committed or is about to be committed, any person is rescued or a person involved in such act is arrested, the person providing such information shall be given a reward from the Rehabilitation Fund under Section 14 an amount equal to ten percent of the fine imposed under Section 15. (2) If more than one person provided information under sub-section (1), such amount shall be given to them in equal proportion. 20. Confidentiality of informant's details: The name, address, and details of the information received from an informant providing information under sub-section (1) of Section 19 shall be kept confidential. 21.

Remission of sentence: (1) If any accused charged with an offence under this Act admits the offence committed by him/her and assists the police, government attorney, or court in gathering evidence related to such offence or in arresting other accused persons or their gang or accomplices, and if he/she has committed the offence for the first time, the court may, while imposing punishment for such offence, grant a remission of up to twenty-five percent of the punishment. Provided that, if the assistance provided by him/her is not corroborated by other evidence, or if he/she gives a statement in court that is contrary to the assistance provided to the police or government attorney, then, notwithstanding anything written in this Act or the prevailing law, a case may be filed again against him/her. (2) Notwithstanding anything written in sub-section (1), remission of sentence under this Section shall not be granted in the following circumstances:- (a) Granting remission to the principal accused, (b) For trafficking or transportation of a child, (c) If the person has already availed the benefit of remission once. 22. Power to claim: At the time of filing a case in court for an offence under this Act, the concerned government attorney may claim that the accused has committed a criminal offence involving moral turpitude. 23. Power to form committee: (1) The Government of Nepal may, as prescribed, form a National Committee and, as required, District Committees for the purpose of controlling offences under this Act and coordinating between government agencies and non-governmental organizations in matters relating to the rehabilitation of victims. (2) The functions, duties, and powers of the committee under sub-section (1) shall be as prescribed. 24. Punishment for obstruction: If any person obstructs or opposes the work and proceedings relating to investigation and inquiry of an offence under this Act, he/she shall be liable to a fine of up to ten thousand rupees. 25. Prohibition of publicity: (1) No person shall publish in newspapers or publicize through other means of communication the real name, photograph, or any details detrimental to the character of a victim without his/her consent. (2) A person who publishes a name, photograph, or details or publicizes them contrary to sub-section (1) shall be liable to a fine from ten thousand

rupees to twenty-five thousand rupees. 26.

Provision of security: If a person filing a complaint under Section 5 makes a request for security to the nearest police office, showing reasonable cause that he/she may face retaliatory action due to the complaint filed with the police or due to the statement or Amended by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072. testimony given in a court or due to any assistance provided to the victim by a human rights defender deployed for the protection of women's human rights, such police office shall arrange for any or all of the following measures:- (a) Providing security while coming and going to the court during the proceedings of the case, (b) Keeping or arranging to keep under police protection for a specified period, (c) Placing in the centre. Inserted by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072.26a. Provision of daily and travel allowance to witnesses: (1) A witness appearing in court on behalf of the Government of Nepal in a case under this Act shall be provided with daily and travel allowance equivalent to that received by a non-gazetted first class government employee under prevailing law by the concerned Government Attorney Office. (2) If a government employee appears in court as a witness or expert in a case under sub-section (1), the office where he/she is posted shall provide the daily and travel allowance that he/she is entitled to under prevailing law. 27. Proceedings in camera: (1) The proceedings and hearing of a case related to an offence under this Act shall be conducted in camera. (2) When proceedings and hearing are conducted in camera under sub-section (1), only the parties to the case, their legal practitioners, and persons permitted by the court may enter such chamber. 28. Government to be the plaintiff: A case under this Act shall be a government-plaintiff case, and such case shall be deemed to be included in Schedule-1 of the Transformed by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 and amended by the Act to Amend Some Nepal Acts relating to the Civil Code, 2075. Criminal Procedure Code, 2074. 29. Power to frame rules: The Government of Nepal may frame necessary rules for the purpose of implementing this Act. 30. Repeal and saving: (1) The Body Mutilation and Sale (Control) Act, 2043 is hereby repealed. (2) The acts and proceedings done under the Act mentioned in sub-section (1) shall be deemed to have been done under this Act.